

EXHIBIT 2 [REDACTED]

[REDACTED]

UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.

In the Matter of

**CERTAIN TRANSFORMERS AND
COMPONENTS THEREOF**

Investigation No. 337-TA-_____

DECLARATION OF RAHUL ARORA

I. INTRODUCTION

1. I am the Chief Business Officer and Co-Founder of Ayr Energy, Inc. (“Ayr”). I submit this declaration in support of Ayr’s Complaint under Section 337 of the Tariff Act of 1930 concerning certain transformer products and components thereof.
2. I co-founded Ayr in 2024 with Yashashvi Takallapalli and Anirudh Reddy. The company’s name derives from the first initials of each co-founder’s given name—Anirudh, Yash, and Rahul.
3. Ayr was established as an original equipment manufacturer (“OEM”) for critical power equipment, including high-voltage power transformers, distribution (medium-voltage) transformers, special-purpose transformers, high-voltage circuit breakers, medium-voltage switchgear, and low-voltage switchboards.
4. I have personal knowledge of the facts set forth in this declaration, except where stated on information and belief. Where I testify based on Ayr’s business records, internal systems, financial records, project records, customer records, proposal materials, or other documents maintained by Ayr, I am familiar with those records and with how Ayr creates, maintains, and uses them in the ordinary course of business.
5. This declaration addresses Ayr’s customer-facing operations, proposal development, installation and commissioning activities, logistics and delivery activities, sales and marketing investments, and the injury and threatened injury to Ayr’s domestic industry.

**II. AYR’S DOMESTIC INDUSTRY PRODUCTS AND CUSTOMER-FACING
BUSINESS MODEL**

6. Ayr’s primary product offerings are custom-engineered transformer systems sold, delivered, installed, and commissioned for U.S. customers. I have been informed by counsel these products are called the domestic-industry products (the “DI Products”).

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7. The DI Products span multiple application categories developed for U.S. end users, including main power transformers for utility-scale power projects, utility substations and large data centers, medium-voltage transformers for mid-sized projects such as solar projects and small data centers, and high-voltage circuit breakers and switchboards.
 8. The DI Products are designed and configured using Ayr's Asserted Trade Secrets, as I understand that term based on information from counsel.
 9. The DI Products are marketed and sold under the AYR ENERGY mark.
 10. Ayr's competitive position does not rest on a single formula or isolated technical component. It rests on an integrated business model that Ayr carries out through its U.S.-based operations.
 11. Ayr applies and re-applies its proprietary methodologies across multiple phases of its U.S. operations, including proposal development, customer engagement, logistics coordination, installation, and commissioning.
 12. Ayr's U.S.-based activities together put Ayr's proprietary business model into practice, including the Asserted Trade Secrets, and the commercialization of the DI Products under the AYR ENERGY mark within the United States.

III. PROPOSAL DEVELOPMENT AND CUSTOMER-FACING OPERATIONS

13. Ayr's U.S. personnel are responsible for preparing and submitting each project-specific proposal to U.S. customers.
14. Ayr's proposals are not generic. Each proposal is custom-developed based on customer-specific requirements, project conditions, and Ayr's internal design and pricing methodologies.
15. Ayr's proposal process relies on the proprietary systems and methodologies that comprise Ayr's Asserted Trade Secrets.
16. That process integrates engineering design, bill-of-materials, and pricing inputs to generate competitive bids.
17. Ayr's proprietary methodologies enable Ayr to generate detailed, project-specific proposals—including engineering specifications, bill-of-materials breakdowns, and firm pricing—in less than a week.
18. Established competitors typically require approximately two to three weeks or more to generate comparable proposals.
19. Based on my involvement in Ayr's operations since its founding, Ayr's speed advantage is the result of iterative development and validation of its proprietary models, both through engineering and through real-world transformer performance.

- [REDACTED]
20. Ayr's speed advantage meaningfully improves Ayr's customer responsiveness, conversion rates, and ability to compete for U.S. business.
 21. Ayr's U.S.-based commercial efforts have produced a robust pipeline of U.S. projects, with approximately [REDACTED] projects closed or under contract to date, representing over \$810 million in total sales as of July 2026.
 22. Ayr's project pipeline is managed through Ayr's U.S.-based customer-relationship infrastructure. This team was not only responsible for securing the nearly billion dollars in sales referenced above, but continues to develop a forward-looking pipeline of sales through pitches and responses to various requests for proposals. As of July 2026, Ayr's project pipeline included over [REDACTED] active opportunities, representing approximately [REDACTED] in potential project value, across approximately [REDACTED] U.S. customers.
 23. Ayr personnel remain engaged throughout the project lifecycle, including project execution, delivery and installation, and post-installation support and maintenance coordination.

IV. INSTALLATION, COMMISSIONING, AND FIELD SERVICES IN THE UNITED STATES

24. Installation and commissioning of the DI Products are a core part of Ayr's product offering. For high-voltage main power transformer projects, Ayr's customer contracts include installation and commissioning as part of the delivered scope, and Ayr's pricing reflects those services as core components of the transaction. For medium-voltage transformer projects, Ayr's contractual scope encompasses delivery to the project site, together with associated field services including inspections, repairs, and testing performed at or after delivery to ensure proper operation of the equipment.
25. Ayr does not sell standardized, off-the-shelf transformers. Each installation is project-specific and technically complex.
26. Each installation requires adaptation to site conditions, grid interconnection requirements, and customer-specific operational constraints.
27. Without installation and commissioning, the DI Products cannot be placed into service and Ayr's proprietary design and engineering work cannot deliver value to the customer.
28. Ayr's transformer systems are installed at project sites throughout the United States.
29. Ayr's installation activities are performed within the United States and are a significant part of Ayr's U.S. operations.
30. Installation is carried out by U.S.-based installation partners, [REDACTED] which provides specialized field installation, assembly, and commissioning services.
31. Ayr personnel, including Ayr's U.S.-based field-services lead, logistics coordinators, and technical personnel, coordinate, supervise, and actively participate in installation activities,

maintaining continuous coordination with [REDACTED] and other installation partners before, during, and after installation.

32. Ayr briefs its installation partners on the specifications and integration requirements of each custom unit.

33. Installation of each DI Product involves various tasks, which may include:

- site preparation and coordination, including planning for delivery, staging, and installation of large-scale equipment; coordination with customers and contractors; and ensuring that site conditions are suitable for installation;
- physical installation and assembly, including positioning transformer units, mechanical integration of components, and assembly where required;
- electrical integration, including connecting transformer systems to transmission lines, substations, or other project-specific systems, and ensuring compatibility with existing infrastructure;
- testing and commissioning, including energization, validation, and operational testing to confirm performance against design specifications and customer requirements; and
- warranty and maintenance support, including addressing issues during initial operation and coordinating ongoing service and maintenance.

34. Installation requires significant on-site labor, as described below.

- For high-voltage projects, installation typically involves on-site crews of approximately five personnel.
- For high-voltage projects, installation typically ranges from approximately three days to two to three weeks per project, depending on the size, configuration, and complexity of the DI Product.
- On larger projects, total installation-and-commissioning timelines may extend to approximately one month.

35. Ayr's installation and commissioning activities are directly tied to and implement Ayr's proprietary business model, including the Asserted Trade Secrets. Because the DI Products are custom-designed, installation necessarily requires application of the same proprietary knowledge used during the design and proposal phases, including engineering determinations reflected in Ayr's specifications, system architecture, and project-specific configurations.

V. PAYMENTS TO U.S.-BASED INSTALLATION PARTNERS AND U.S. INPUTS

36. Ayr incurs large and recurring expenditures on U.S.-based labor through its engagement of specialized installation partners, including [REDACTED].
37. For high-voltage projects, Ayr estimates installation and commissioning costs of approximately [REDACTED] per project, depending on project size and complexity.
38. Ayr has delivered approximately [REDACTED] to date, comprising [REDACTED]. The transformer projects completed to date have consisted primarily of [REDACTED].
39. Ayr's completed U.S. projects have resulted in total U.S.-based field-service expenditures of approximately [REDACTED] representing payments to [REDACTED] and other partners for inspections, repairs, and testing performed in connection with [REDACTED].
40. As Ayr delivers on its main-power transformer contracts, Ayr anticipates incurring additional substantial U.S.-based expenditures for installation and commissioning of high-voltage main-power transformer projects currently under contract or in development, at an estimated cost of approximately [REDACTED] per project for a total of [REDACTED] based only on the projects currently contracted for installation.
41. Ayr also purchases significant inputs from U.S.-based suppliers in connection with U.S. installation and commissioning. Those inputs include transformer oil purchased locally in the United States for delivery to U.S. project sites. Ayr has incurred [REDACTED] in transformer oil purchases to date, representing approximately [REDACTED] commissioned.
42. Again, Ayr anticipates this to increase substantially as it delivers on its main-transformer projects under contract and slated for delivery in CY2026 and CY2027. For example, Ayr's main-power transformers in the 100-300 MVA range require between [REDACTED] gallons of transformer oil each. At prevailing market costs, that oil may cost [REDACTED] per transformer, exclusive of delivery, handling, filtration, filling, testing, and related commissioning services. That corresponds to [REDACTED] in oil costs for Ayr's contracted for main-power transformer sales.

VI. LOGISTICS, DELIVERY, AND OPERATIONAL INFRASTRUCTURE

43. Ayr's U.S.-based field-services and logistics lead, together with Ayr's other U.S. personnel, actively manages and coordinates logistics activities within the United States.
44. Ayr's U.S. logistics activities include a comprehensive array of tasks, including:

- coordinating customs clearance and import processing, including working with customs brokers and ensuring compliance with U.S. regulatory requirements;
 - arranging inland transportation from ports of entry to project sites, including coordinating with specialized heavy-haul carriers capable of transporting large transformer units;
 - managing delivery schedules and site readiness, including coordination with customers, EPC contractors, and installation partners to ensure that project sites are prepared to receive equipment;
 - addressing logistical challenges that arise during transport and delivery, including routing constraints, permitting requirements, and project-specific timing issues;
 - project-specific planning, coordination across multiple parties, and real-time problem-solving; and
 - closely integrating with its installation and commissioning operations.
45. Ayr's U.S. personnel coordinate directly with [REDACTED] and other installation partners to ensure that the DI Products arrive in the correct sequence and configuration, that equipment is staged appropriately, and that delivery timing aligns with installation schedules and site readiness.
46. Ayr's U.S. personnel devote considerable time and effort to logistics coordination on a project-by-project basis, including ongoing communication with logistics providers, customers, and installation partners throughout the lifecycle of each project, from shipment through final delivery and integration.
47. Ayr incurs significant U.S.-based expenditures in connection with logistics and delivery activities.
48. Those expenditures include payments for freight forwarding and customs brokerage services, inland transportation and heavy-haul logistics, site delivery coordination, and related services.
49. To date, Ayr has incurred [REDACTED] in U.S.-based logistics and delivery expenditures, with additional expenditures expected for projects under contract or in development at an amount of [REDACTED] per project. Once again, because Ayr's deliveries to date [REDACTED], Ayr anticipates the logistics and delivery costs to increase many-fold as Ayr delivers on its contracted-for HV main-power transformer projects.
50. Ayr's logistics and delivery activities are directly tied to its proprietary business model, including its trade secrets.

[REDACTED]

51. Because the DI Products are custom-designed, logistics planning must account for project-specific design parameters, including system configuration, component selection, and installation requirements.

52. Ayr personnel apply proprietary knowledge in coordinating delivery and site integration.

VII. SALES, MARKETING, AND CUSTOMER DEVELOPMENT

53. Ayr makes large and ongoing investments in the United States in connection with sales, marketing, and customer development.

54. Ayr's sales activities are conducted by U.S.-based personnel responsible for originating and developing business opportunities with U.S. customers, including utilities, independent power producers, and project developers.

55. Ayr's sales activities include:

- direct outreach to prospective customers;
- engagement through industry relationships and referrals;
- ongoing discussions with developers regarding project requirements; and
- identification and development of project opportunities within the United States.

56. Ayr maintains a U.S.-based marketing function concentrated in California that supports Ayr's sales and customer-development activities.

57. Ayr's U.S. marketing activities include:

- participation in U.S. industry trade shows and conferences;
- digital and online marketing efforts, including LinkedIn and web-based campaigns;
- customer outreach campaigns; and
- development of marketing materials and messaging.

58. As set forth below, Ayr's U.S. marketing investment has grown substantially year over year.

59. In the prior year, Ayr employed [REDACTED] and incurred [REDACTED] in marketing expenditures, excluding labor.

60. Ayr has since [REDACTED] marketing headcount to [REDACTED] full-time employees.

61. Ayr has engaged approximately [REDACTED] outside firms, many of them U.S.-based, to provide PR, marketing, and event/content support.

62. Ayr's projected marketing spend for the current year is approximately [REDACTED].

- [REDACTED]
63. Ayr's sales, marketing, and proposal activities are directly tied to its proprietary business model, including the Asserted Trade Secrets and the AYR ENERGY mark.
 64. Ayr's proposal-development process relies on proprietary methodologies governing transformer design, including U.S.-specific design features, pricing and costing, and supplier and component selection.
 65. Those methodologies enable Ayr to generate competitive, project-specific proposals and secure business in the United States.
 66. Ayr's marketing and customer-development activities build on the goodwill associated with the AYR ENERGY mark and the accurate commercial representations Ayr makes regarding the origin, capabilities, and performance of its transformer products.

VIII. LOST AND AT-RISK SALES

67. Respondents' conduct has placed at risk, and risks costing Ayr, U.S. sales that Ayr's domestic industry depends on.
68. It is my understanding that, since Yash Jain's departure, [REDACTED]
[REDACTED] This presents a
substantial prospect of lost and at-risk sales as [REDACTED] alone accounts for over [REDACTED]
[REDACTED] and the lost sales to [REDACTED]
69. The injury to Ayr is amplified by the lead times that characterize the U.S. main-power-transformer market. Because individual transformer projects can carry lead times of a year or more between order and delivery, sales that Respondents secure today translate into deliveries—and U.S. imports—well into the future.
70. As a result, the full scope of lost and at-risk U.S. sales caused by Respondents' conduct is not yet apparent and continues to grow.
71. Every lost or compromised U.S. deal represents not only lost transformer revenue, but also the lost opportunity to deploy Ayr's U.S.-based proposal development, engineering, logistics, installation, field-services, and repair and warranty operations—the activities that make up Ayr's domestic industry.

IX. PRICE PRESSURE AND MARGIN RISK

72. Based on my experience managing Ayr's U.S. commercial operations, the U.S. main-power-transformer market is intensely price-sensitive. Customers routinely solicit bids from multiple suppliers and use competing quotes to negotiate price reductions.
73. Transformers are a major cost component of utility-scale renewable, storage, and data-center projects.

74. Respondents' aggressive U.S. quoting has required Ayr to reduce its bid prices to remain competitive in opportunities where Respondents or their affiliates also bid, compressing Ayr's margins on the business it wins.

X. HARM TO AYR'S MARKET POSITION AND GROWTH

75. Ayr operates in a project-based market in which customer relationships and repeat business are critical.
76. In my experience, once a customer awards a transformer contract to a supplier, that supplier is likely to receive follow-on business for related or future projects.
77. Each lost project therefore represents not only immediate lost revenue, but also the loss of downstream opportunities, as repeat customers account for a substantial portion of Ayr's business. By way of example, the [REDACTED] projects that Ayr has commissioned are attributable to [REDACTED] different customers.
78. In my experience, once a customer forms a perception about a supplier's capabilities or project history based on misleading information, correcting that perception requires significant effort and repeated engagement, and in some cases the customer relationship cannot be fully recovered.

XI. CONCLUSION

79. Ayr has made large and ongoing investments in U.S.-based personnel, proposal development, customer-facing operations, installation, commissioning, field services, logistics, marketing, and customer development—all of which are tied to the DI Products, Ayr's proprietary business model, the Asserted Trade Secrets, and the AYR ENERGY mark.
80. Respondents' conduct—including the misappropriation of Ayr's Asserted Trade Secrets, the submission of bids informed by Ayr's own proprietary cost data, and the use of false and misleading commercial representations and infringing uses of the AYR ENERGY mark—has caused and threatens to continue causing lost sales, price pressure, margin compression, harm to customer relationships, erosion of goodwill, and impairment of Ayr's ability to expand and sustain its U.S. domestic industry.
81. I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

By:

Executed on July 16, 2026

/s/ Rahul Arora
Rahul Arora